

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TRACI PLAUT,

Petitioner

VS.

ZACHARY PLAUT,

Respondent

) Case Number: FDI-25-801768

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR PARTNER SUPPORT, CHILD
SUPPORT, PROPERTY CONTROL, I REQUEST THAT OUR CHILD PRIMARILY RESIDE WITH
ME IN SAN FRANCISCO WHERE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Traci Plaut (Mother) and Respondent Zachary Plaut (Father). They share one minor child: Zarah Marie Plaut (DOB: 07/12/12).
- 2) On March 30, 2026, Mother filed an ex parte Request for Order seeking pendente lite orders regarding child custody, visitation, guideline spousal support, guideline child support, property control of the 2632 26th Avenue, San Francisco home, and the minor child's residence (the minor child be permitted to reside with her in San Francisco). Mother concurrently filed an Income and Expense Declaration (file dated March 27, 2026). The Court denied Mother's request for emergency relief and set the matter for hearing on May 4, 2026 (on the Court's Readiness calendar).

- 1 3) On April 24, 2026, Father filed a Responsive Declaration wherein he asks this Court to order a
2 child custody evaluation and equal parenting plan. Father does not oppose Mother's requests for
3 support and property control; however, Father requests Mother be ordered to pay all her own
4 expenses as well as the mortgage and carrying costs on the property. Father states he is currently
5 paying all expenses. Father asks the Court to impute Mother at her previous salary as a researcher
6 at UCSF or minimum wage. Father concurrently filed an Income and Expense Declaration (file
7 dated April 24, 2026).
- 8 4) On April 29, 2026, Father filed "Respondent's Evidentiary Objections to Petitioner's Declaration
9 and Documents in Support of Her Request for Order and Additional Documents," which has been
10 read and considered by the Court.
- 11 5) On June 17, 2026, Father filed a "Respondent's Supplemental Responsive Declaration to
12 Petitioner's Request for Order," which has been read and considered by the Court. Father
13 attached a proposed XSpouse report to this pleading.

14 **B. Findings and Order**

- 15 1) As a preliminary matter, all objections contained in Father's April 29, 2026 pleading entitled
16 "Respondent's Evidentiary Objections to Petitioner's Declaration and Documents in Support of
17 Her Request for Order and Additional Documents" are OVERRULED.
- 18 2) Custody and Visitation: This Court has jurisdiction to make child custody orders in this case
19 under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order
20 may subject the party in violation to civil or criminal penalties, or both. The country of habitual
21 residence of the minor child(ren) is the United States.
- 22 3) Mother shall continue to have sole legal and sole physical custody of the minor child.
- 23 4) Father shall have visitation with the minor child on the 1st, 3rd and 5th weekends of each month
24 from Saturday at 10:00 a.m. – 6:00 p.m., and on Sundays from 10:00 a.m. – 6:00 p.m.
- 25 5) In addition, Father may have a weekly dinner visit with the minor child from after school until
26 7:30 p.m. on Wednesdays each week. If the minor child is not in school, then Father's
27 Wednesday visits shall commence at 3:30 p.m.
- 28 6) Father shall provide all the transportation for visits.
- 29

- 1 7) Father's request for a Family Code section 3111 evaluation is GRANTED. The protocol for
2 selecting the evaluator shall be as follows:
- 3 a. Father shall select the names of three qualified professionals to conduct the evaluation.
4 He shall send his list of professionals to Mother, no later than close of business on July 6,
5 2026.
- 6 b. Mother shall then select the one person from Father's list whom she would like to
7 perform the evaluation. Mother shall make her selection, no later than close of business
8 on July 13, 2026.
- 9 c. Both parties shall promptly cooperate in filling out any required intake forms and
10 commence the process as soon as the selected professional is ready to commence the
11 process.
- 12 d. Father shall pay the costs, subject to later reallocation by the Court, if Father chooses to
13 seek a contribution from Mother. Court will reserve jurisdiction over the reallocation of
14 costs issue.
- 15 8) A review hearing shall be held on **August 20, 2026, in Department 403 at 9:00 a.m.** to review
16 the status of the Family Code section 3111 evaluation.
- 17 9) Financial Matters: Mother's request for guideline monthly child support and temporary monthly
18 spousal support is GRANTED.
- 19 10) Father's request for imputation of income to Mother is DENIED without prejudice as is
20 undisputed that Mother was laid off from her job in 2024. However, Mother is warned that the
21 Court will consider imputation of income if she remains unemployed for an unreasonable length
22 of time (i.e., an additional 6-9 months).
- 23 11) In accordance with the XSpouse report attached hereto and incorporated herein, Father shall pay
24 Mother \$4,384 in guideline monthly child support and \$9,030 in temporary monthly spousal
25 support for a total monthly support payment of \$13,414. Father shall make monthly support
26 payments on the 1st of every month commencing July 1, 2026.
- 27 12) The XSpouse inputs are based on Father's support calculation attached to his June 17, 2026
28 Supplemental Declaration adjusted to reflect Mother's income as \$0.
29

1 13) The Court reserves jurisdiction to calculate child support and spousal support retroactive to the
2 filing date of the petition, including any arrears Father may owe Mother or reimbursements
3 Father may be owed for payment of voluntary support.

4 14) The parties shall share the following child support add-on expenses going forward with Father
5 responsible for 52% of costs and Mother responsible for 48% of costs: childcare costs related to
6 employment or to reasonably necessary education or training for employment skills, reasonable
7 uninsured healthcare costs for the child, private school tuition if applicable, and the reasonable
8 costs associated with mutually agreed upon extracurricular activities (neither party shall
9 unreasonably withhold consent for a child to participate in an activity). The procedure to make or
10 pay a reimbursement claim for these child support add-ons shall be as set forth in Judicial Council
11 Form FL-192.

12 15) Mother's unopposed request for exclusive use, possession, and control of the 2632 26th Avenue,
13 San Francisco home is GRANTED. Mother shall be solely responsible for all bills associated
14 with the home, including, but not limited to, the mortgage and carrying costs.

15 16) Counsel for Father shall prepare the Findings and Order After Hearing, which shall include as
16 attachments forms FL-342 and FL-192.

17 17) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
18 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
19 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
20 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
21 proposed order after hearing directly to the court. Failure to submit the order after hearing within
22 10 days may allow the other party to prepare a proposed order and submit it to the court in
23 accordance with CA Rules of Court, Rule 5.125(d).

2026

Fixed Shares

Number of children Percent
time with NCP Filing status
Number of exemptions
Wages and salary
Self employed income
Other taxable income
TANF CS received
Other nontaxable income
New spouse income
Employee 401-k contribution
Adjustments to income
SS paid prev marriage
CS paid prev marriage
Health insurance
Other medical expenses
Property tax expenses
Ded interest expense
Contribution deduction
Misc tax deductions
Qualified business income
deduction
Required union dues
Mandatory retirement
Hardship deduction
Other GDL deductions
Child care expenses

Father Mother

0 1
20.00% 0.00%
MFJIN MFJIN
1 2
38000 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
0 0
963 2341
1030 4473
0 0
0 0
0 0
0 0
0 0
0 0
0 0

Xspouse 2026-1-CA

Monthly Figures

2026

GUIDELINE

Nets (adjusted)

Father 28054
Mother 0
Total 28054
Addons 0
Guideln CS 4384
S.Clara SS 9030
Total 13414

Support

Proposed

Tactic 9

CS 4384
SS 9030
Total 13414
Saving 0
Releases 0

Monthly Figures

Cash Flow

Guideline Proposed

Combined net spendable 28054 28054
Percent change 0% 0%
Father
Payment cost/benefit -13414 -13414
Net spendable income 14641 14641
Change from guideline 0 0
% of combined spendable 52% 52%
% of saving over guideline 0% 0%
Total taxes 9946 9946
Dep. exemption value 0 0
withholding allowances 0 0
Net wage paycheck 25095 25095
Mother
Payment cost/benefit 13414 13414
Net spendable income 13414 13414
Change from guideline 0 0
% of combined spendable 48% 48%
% of saving over guideline 0% 0%
Total taxes 0 0
Dep. exemption value 0 0
withholding allowances 0 0
Net wage paycheck 0 0

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	20 - 80	0	0	0 Father	4,384 Father	4,384 Father
0000-00-00	20 - 80	0	0	0 Father	4,384 Father	4,384 Father